

1 THE COURT: Sustained. All right.

2 Mr. Rosario, I just want to let the jury know
3 this. Okay?

4 Written police reports are not evidence for a
5 number of legal and evidentiary reasons; therefore,
6 you won't be receiving the written reports or copies
7 as evidence.

8 Certainly they can reference it. There is no
9 issue with regard to referencing them in their
10 examination of witness; however, as I said, you won't
11 be getting a copy.

12 If it is something that is important for you
13 to know, please record that in your notes, all right?
14 Okay.

15 So you may continue, sir.

16 MR. ROSARIO: Q. So if a person says that
17 they were assaulted and they have recorded on 911 and
18 it was recorded in body cams, is that something that
19 is important to determination of fault?

20 A. Sorry. Are you talking about a hypothetical
21 or are you talking about this incident?

22 Q. I would say, typically, in your regular
23 business operations of a day when you are out doing
24 your duty, Officer Fernandez -- and thank you very
25 much for what you are doing, my team really
26 appreciates you, we really do -- is it something that
27 if somebody states that they have been assaulted in a
28 situation, would that typically make it into a report?